

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: July 1, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE

On July 25, 2025, Complainant filed a Verified Complaint in this matter alleging that Respondent violated 46 U.S.C. § 40901(a) by operating as an ocean transportation intermediary (“OTT”) without a license. In general, Complainant alleges that Respondent, which was formed by Complainant’s former employees, diverted Complainant’s customers while utilizing Complainant’s license number and operational infrastructure. (Complaint, at 2-5). Complainant seeks a cease-and-desist order and reparations. (Complaint, at 6-7). After I denied Respondent’s Motion to Dismiss (*see* Order Denying Motion to Dismiss), Respondent answered and denied the allegations in the Complaint. (*See generally* Answer).

On June 23, 2026, Respondent filed Respondent’s Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo Corp., and Extend Case Deadlines (“MTC”). In the MTC, Respondent asserts that it issued interrogatories and requests for production regarding Complainant’s damages, to which Complainant indicated complete responses were forthcoming. (MTC, at 1-7). Respondent argues that because Complainant has not yet supplemented its discovery responses, Respondent’s ability to defend itself has been potentially prejudiced. (MTC, at 8-11). Respondent also asks for the schedule to be extended. (MTC, at 11-12).

On July 1, 2026, Complainant filed a Response in Opposition to Motion to Compel (“MTC Opp.”). In it, Complainant asserts that it was not afforded an opportunity to confer regarding the MTC, that the MTC is untimely, and that Complainant’s ability to answer questions about damages depended on Respondent’s compliance with its own discovery obligations. (MTC Opp., at 1-3). Complainant nevertheless indicates that it will supplement its discovery responses by July 15, 2026, and that the case schedule should be amended. (MTC Opp., at 4-5).

In light of Complainant’s representation that it will supplement its discovery responses, and the fact that both parties agree an extension will be necessary, I find that a status conference would be helpful.

Accordingly, the parties are **HEREBY ORDERED** to appear for a status conference on Monday, July 6, at 10:00 a.m., Eastern Standard Time. The conference will be conducted via Teams. Counsel will receive a Teams link. The parties should be prepared to discuss forthcoming supplemental discovery responses and amendments to the case schedule.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge